

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alfredo Gonzalez	Team: Squad #07	CCRB Case #: 201410022	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 09/26/2014 11:30 AM	Location of Incident: § 87(2)(b) and on West 155th Street and Bradhurst Avenue.	18 Mo. SOL 3/26/2016	Precinct: 32
Date/Time CV Reported Tue, 09/30/2014 2:25 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 09/30/2014 2:25 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Risel Martinez	22049	953063	032 PCT
2. POM Michael Lassen	16482	951899	032 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Edwin Perez	04039	927717	032 PCT
2. POF Shanturah Brathwaite	00913	938109	032 PCT
3. DTS Salahudin Clark	841	941566	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Risel Martinez	Force: PO Risel Martinez pointed his gun at § 87(2)(b)	A . Exonerated
B . POM Michael Lassen	Force: PO Michael Lassen pointed his gun at § 87(2)(b)	B . Exonerated
C . POM Risel Martinez	Force: PO Risel Martinez used physical force against § 87(2)(b)	C . Exonerated
D . POM Risel Martinez	Discourtesy: PO Risel Martinez spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . POM Risel Martinez	Abuse: PO Risel Martinez threatened § 87(2)(b) with the use of force.	E . Unsubstantiated

Case Summary

On September 26, 2014, at approximately 11:30 a.m., PO Risel Martinez and PO Michael Lassen responded to a domestic dispute call involving a man with a knife at § 87(2)(b), in Manhattan. Quickly after arriving, the female complainant pointed out the defendant, § 87(2)(b) to the officers. § 87(2)(b) immediately fled upon seeing the officers and PO Martinez and PO Lassen followed on foot. During the pursuit, PO Lassen suffered an injury to his left knee while jumping over a fence (see encl. 8F – 8I). In the vicinity of W. 155th Street and Bradhurst Avenue, PO Martinez and PO Lassen reached § 87(2)(b). PO Lassen exited the RMP and both he and PO Martinez pointed their firearms at § 87(2)(b) (**Allegation A and B**). PO Martinez and PO Lassen then approached § 87(2)(b) and attempted to place him in handcuffs. § 87(2)(b) alleged that PO Martinez got him on the ground and proceeded to punch, knee, and kick him on his torso and face (**Allegation C**). While this occurred, § 87(2)(b) alleged that PO Martinez called him a “fucking woman beater” (**Allegation D**). PO Martinez allegedly threatened to “fuck him up” once § 87(2)(b) arrived at the 32nd Precinct stationhouse (**Allegation E**). § 87(2)(b) was arrested for § 87(2)(b) (encl. 6C – 6E).

Mediation, Civil and Criminal Histories

This complaint was ineligible for mediation. § 87(2)(b) filed a notice of claim against the city of New York on November 19, 2014 (encl. 21A). § 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 3C).
- PO Martinez has been a member of the NYPD for two years, and has had four previous CCRB allegations involving one case in which mediation was attempted. The previous allegations indicate that PO Martinez used discourteous language and aggressively pushed the c/v. § 87(2)(g) (encl. 3A).
- This is the first CCRB complaint against PO Lassen during his two year tenure (encl. 3B).

Finding and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

Recommendations

Allegation A – PO Martinez pointed his gun at § 87(2)(b)

Allegation B – PO Lassen pointed his gun at § 87(2)(b)

PO Martinez and PO Lassen acknowledged pointing their guns at § 87(2)(b)

The Department’s policy is that an officer is justified in drawing his firearm and pointing it at an individual so long as there is a reasonable fear for his own or another person’s safety. Police Department v. Watson, OATH Index No. 176/89 (encl. 1A – 1T).

Though § 87(2)(b) did not allege that PO Martinez pointed his gun at him, PO Martinez's testimony indicated that he did in fact point his gun at § 87(2)(b) in order to get his compliance once the officers reached him at W. 155th Street and Bradhurst Avenue. Both § 87(2)(b) and PO Lassen's testimony agree that PO Lassen pointed his gun at § 87(2)(b).

§ 87(2)(g)
Therefore, it is recommended that **Allegation A and B** be closed as **exonerated**.

Allegation C – PO Martinez used physical force against § 87(2)(b)

It is undisputed that PO Martinez used physical force against § 87(2)(b) (encl. 7L).

Patrol Guide Procedure 203-11 states that only the amount of force necessary to overcome resistance will be used to effect an arrest (encl. 2A – 2B).

§ 87(2)(b) alleged that he was taken to the ground by PO Martinez, who then continued to punch, knee and kick him on his side and on his face. § 87(2)(b) also alleged that he was not resisting while this was occurring. § 87(2)(b) could not give an exact order of where he was struck and how many times. § 87(2)(a) PHL § 18(6)

§ 87(2)(g)
§ 87(2)(b) stated that he was not resisting during the interaction and PO Martinez stated that his use of force was necessary because § 87(2)(b) was in compliant. PO Martinez acknowledged using force against § 87(2)(b) but noted that it was proportional to gaining compliance. PO Martinez acknowledged punching § 87(2)(b) on his side approximately two times. When that did not gain § 87(2)(b) compliance, PO Martinez proceeded to punch § 87(2)(b) in the head and face approximately four times. According to PO Martinez, § 87(2)(b) was resisting by flailing his right arm, but could not recall whether this meant he tensed up his body or flailed his arm above his head. PO Martinez did not recall kneeing § 87(2)(b) but admitted that it was likely that he had his knee against § 87(2)(b) back while attempting to handcuff him. PO Martinez denied ever kicking § 87(2)(b). § 87(2)(g) PO Lassen was also assisting in trying to handcuff § 87(2)(b). According to PO Martinez and PO Lassen, it took the arrival of a third officer to finally place § 87(2)(b) in handcuffs.

§ 87(2)(g)
Line of Duty reports demonstrated that PO Martinez sustained an injury to his right shin and right hand, while PO Lassen sustained a laceration to his left knee during the incident (encl. 7F, 8F). § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **exonerated**.

Allegation D – PO Martinez spoke discourteously to § 87(2)(b)

Allegation E – PO Martinez threatened to use force against § 87(2)(b)

§ 87(2)(b) alleged that PO Martinez called him a “fucking woman beater” and threatened to “fuck him up” once they arrived at the 32nd Precinct stationhouse, during their scuffle and immediately following him being placed in handcuffs. PO Martinez denied ever saying these statements to § 87(2)(b). PO Lassen also denied ever hearing PO Martinez say these statements or saying them himself. Both officers also stated that upon being placed in handcuffs, § 87(2)(b) was immediately taken away by other officers while their injuries were attended to. § 87(2)(g)

Therefore, it is recommended that **Allegation D** and **E** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date